

SENATE No. 1010

The Commonwealth of Massachusetts

PRESENTED BY:

Liz Miranda

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to creating a permanent affordability homeownership program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Liz Miranda</i>	<i>Second Suffolk</i>	
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/12/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>3/13/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/26/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/12/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>3/13/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>3/12/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/8/2025</i>

SENATE No. 1010

By Ms. Miranda, a petition (accompanied by bill, Senate, No. 1010) of Liz Miranda, Sal N. DiDomenico and Patricia D. Jehlen for legislation to create a permanent affordability homeownership program. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to creating a permanent affordability homeownership program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 23B of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by adding the following new section:-

3 Section 31. (a) for the purposes of this section, the following words shall, unless the
4 context clearly requires otherwise, have the following meanings:-

5 “Executive office” shall mean The Executive Office of Housing and Livable
6 Communities.

7 “Low and moderate income” shall mean persons whose income is not less than 70
8 percent, or more than 120 percent of the area median income as defined by the United States
9 Department of Housing and Urban Development.

10 "Mixed-use development", development containing a mix of residential uses and non-
11 residential uses, including, without limitation, commercial, institutional, industrial or other uses.

“Permanently affordable” shall mean a housing unit that has an affordable housing restriction as defined in Section 31 of Chapter 184 of the General Laws which has the benefit of Section 32 of said Chapter 184 that shall be in place for not less than 99 years.

“Project of appropriate size” shall mean a development project that has no less than 1 and no more than 25 housing units.

(b)(1) Subject to appropriation, the executive office shall administer a program known as the permanent affordability homeownership program. The executive office shall administer the program statewide in order to aid in the development and construction of permanently affordable homeownership opportunities for low and moderate income buyers in the Commonwealth. The commonwealth shall accept funds from the appropriate federal authorities for said program.

(2) The executive office shall promulgate rules and regulations in order to establish the process through which applications to the program will be made, how funding will be allocated and the amount of money to be allocated per housing unit, provided the following:

(i) Funds expended from the program may only be used to fund the creation of permanently affordable homeownership units; provided however, that the funds can be used to fund permanently affordable homeownership units within a mixed-use development project.

(ii) Funds expended for the program may only be used on permanently affordable homeownership units affordable to low and moderate income households

(iii) Funds expended from the program may only be used to fund projects of an appropriate size

32 (c) The secretary of housing and livable communities shall report annually to the clerks
33 of the house of representatives and the senate, who shall forward the report to the house of
34 representatives and the senate and the chairs of the joint committee on housing on the activities
35 and status of the program. The report shall include a list and description of all projects that
36 received funds under the program, the amount of each grant, the number of housing units created
37 by each grant, the number of housing units created at each affordability level, and the size of the
38 projects funded.